

Merchant Marine Circular

Panama Maritime Authority
General Directorate of Merchant Marine
Control and Compliance Department

MERCHANT MARINE CIRCULAR MMC-405

- To:** Recognized Organizations (RO's), Ship-Owners/Operators, Company Designated Person Ashore (DPA), Legal Representatives of Panamanian Flagged Vessels, Panamanian Merchant Marine Consulates, SEGUMAR Regional Offices, ASI Inspectors, Port State Control Inspectors, Ship Shipping Companies and other Flag customers.
- Subject:** Fleet Risk Assessment and Performance Monitoring Accelerated Program (FRA & PMAP).
- Reference:**
- a) Resolution No. 106-003-DGMM dated January 3, 2025 - Measures to Optimize the performance of the Panama Merchant Fleet.
 - b) Resolution No. 107-OMI-289-DGMM of March 11, 2024 adopted Resolution A.1185(33) adopted on December 6, 2023 – “Procedures for Port State Control, 2023”.
 - c) Annex 1 - Tokyo MoU - Criteria for attribution of RO responsibility.
 - d) Annex 2 - Paris MoU - Guidance on detention and action taken.
 - e) Paris MoU - Criteria for the responsibility assessment of Recognized Organizations.

This Merchant Marine Circular replaces **MMC-380** and its formats.

1. Purpose:

- 1.1. The purpose of this Circular is to inform the revised measures aimed to optimize the performance of the Panamanian Merchant Fleet.

2. Scope:

- 2.1. To strengthen maritime safety, security, pollution prevention, and the living conditions onboard ships, in compliance with international regulations, the Republic of Panama has established, through Resolution No. 106-003-DGMM of January 03, 2025, measures for vessels representing certain risk level according to their performance and based on risk assessment of the fleet registered.
- 2.2. Similarly, a pre-registration analysis of vessels performance history, age, type, their operating company, economic group, or owner, among other parameters have been implemented to verify, through specific platforms and/or technological tools, that their pre-registration does not harm the interests of Panama or the national



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and international maritime industry.

- 2.3. This Administration considers essential to emphasize that, to comply with safety, security, and pollution prevention regulations, it is necessary to optimize and refine our policies as a Flag State, in accordance with the provisions established in international standards, guidelines and recommendations.

3. Definitions

- 3.1. **Warning vessels:** vessels under a moderate risk performance, have had previous inspections with few deficiencies and no detention records.
- 3.2. **Critical vessels:** are those that present a high-risk performance, given the history of multiple deficiencies.
- 3.3. **Additional survey:** is an inspection, either general or partial according to the circumstances, to be made after: .1 a repair resulting from investigations or whenever any important repairs or renewals are made; or, .2 change, replacement or significant repair of the structure, equipment, systems, fittings, arrangements and material (when ballast water management systems (BWMS) are retrofitted on an existing ship to which an International Ballast Water Management Certificate was previously issued). (Refer to SOLAS 74/88 regulations I/7(a)(iii) and 7(b)(iii) regulation I/8(a)(v) regulation I/9(a)(iv) regulation I/10(a)(vi) MARPOL Annex I regulation 6.1.5 MARPOL Annex II regulation 8.1.5 MARPOL Annex IV regulation 4.1.3 MARPOL Annex VI regulation 5.1.5 BWM Convention regulation E-1.1.5 IBC Code regulation 1.5.2.1.5 IGC Code regulation 1.4.2.5 BCH Code regulation 1.6.2.1.5)
- 3.4. **Additional Verification:** is an audit that may be required, to check if the safety management system still functions effectively, where there are clear grounds to do so, beyond normal procedures such as port State control detentions, or in the case of reactivation after the interruption of operations due to a period out of service, or in order to verify that effective corrective actions have been taken and/or are being properly implemented. Additional verifications may affect the shore-based organization and/or the shipboard management system. The Administration should determine the scope and depth of the verification, which may vary from case to case. The additional verifications should be completed within the time period agreed, taking into account the guidelines developed by IMO. The Administration should follow up on the results of the verification and take appropriate measures, as necessary (Refer to Resolution A.1188(33) - 2023 Guidelines on implementation of the ISM Code by Administrations).
- 3.5. **Port State control officer (PSCO):** A person duly authorized by the competent authority of a Party to a relevant convention to carry out port State control inspections, and responsible exclusively to that Party.



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- 3.6. Recognized Organization (RO):** An organization which meets the relevant conditions set out in the Code for Recognized Organizations (RO Code), (MSC.349(92) and MEPC.237(65)), and which has been assessed and authorized by the flag State Administration in accordance with the provisions of the RO Code to provide the necessary statutory services and certification to vessels entitled to fly its flag.
- 3.7. Deficiency:** A condition found not to be in compliance with the requirements of the relevant conventions.
- 3.8. Detention:** Intervention action taken by the port State when the condition of the ship or its crew does not substantially comply with the relevant conventions to ensure that the ship will not sail until it can proceed to sea without presenting a danger to the ship or persons on board, or without presenting an unreasonable threat of harm to the marine environment, whether or not such action will affect the normal schedule of the departure of the ship.
- 3.9. Non-conformity:** means an observed situation where objective evidence indicates the non-fulfilment of a specified requirement.
- 3.10. Major non-conformity:** means an identifiable deviation that poses a serious threat to the safety of personnel or the ship or a serious risk to the environment that requires immediate corrective action or the lack of effective and systematic implementation of a requirement of the ISM Code.

4. Applicable measures to critical ships

- 4.1.** The General Directorate of Merchant Marine may require that vessels identified as **Critical** (high-risk ships) to comply with the following:
- i) An additional survey every three months, to be carried out by the Recognized Organization that issues the statutory certificates. The scope of these surveys will be annual and/or periodical.
 - ii) Additional verification of the Ship Safety Management System (SMS Certificate), with an initial scope and the possibility of increasing its frequency if non-conformities or deficiencies are identified that could affect the Safety Management System.
 - iii) Ships can also be subject to the PMAP (Performance Monitoring Accelerated Program) consisting of additional verifications and surveys conducted by the Recognized Organization in cooperation with a flag state surveyor at intervals specified by the Administration according to each case.



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5. Applicable measures to warning ships

- 5.1. Shipowners, operators, technical managers, the Designated Person Ashore (DPA), and the vessel Captain are responsible for completing a pre-arrival checklist.
- 5.2. This checklist must be submitted to prearrival@amp.gob.pa one hundred and twenty (120) hours (5 days) prior to the arrival of the vessel to ports under the supervision of the United States Coast Guard (USCG), Paris MOU, AMSA-Australian Maritime Safety Authority and MSA-Maritime Safety Administration (People's Republic of China).
- 5.3. Records of these checks must be kept on board and may be requested by the flag state surveyor during the Annual Safety Inspection (ASI).

6. Maintenance of conditions after survey

- 6.1. In case of any equipment failure or a defect is discovered onboard which cannot be solved immediately, the shipowners, operators, technical managers, DPA or the ship Master shall report at the earliest opportunity to the nearest Segumar Office, the Recognized Organization responsible for issuing the relevant certificate, who shall cause investigations to be initiated to determine whether an additional survey is necessary.
- 6.2. If the ship is enroute to a port under the supervision of port state control authority, the master or owner shall also report and notify immediately to the appropriate local Port State Control Authority (PSC), as indicated in SOLAS Convention Chapter I Regulation 11 "Maintenance of conditions after survey".
- 6.3. Shipowners, operators, technical managers, DPA or the ship Master will coordinate corrective actions with the Recognized Organization (RO) and report the at the earliest opportunity to the nearest SEGUMAR office Refer to MMN-18/2021 for contact list and MMC-156 in case of further actions required.

7. Correctives and Preventive Measures

7.1. Corrective Measures:

- 7.1.1. For all deficiencies identified during a Port State Control Inspections, the following documents and forms shall be submitted to the Panama Port State Control Section as soon as possible:
 - 7.1.1.1. the corrective actions plan (CAP),
 - 7.1.1.2. evidence of the corrective actions taken by the vessel, duly documented,
 - 7.1.1.3. Format in Annex 1 of this Merchant Marine Circular "Correction



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of Deficiencies Reports” Form (F-27). Maintain an onboard file containing records and supporting documentation that demonstrate the closure of deficiencies identified during previous Port State Control (PSC) inspections.

7.2. Preventive Measures:

- 7.2.1.** Ships that have been found with deficiencies or detained by a port state control (PSC) authority shall maintain onboard the documentation specified in MMN-08/2025, concerning the onboard record-keeping requirements for the Panamanian flagged ships, PSC Compliance File.
- 7.2.2.** Additional inspection and/or verification reports related to inspections resulting in deficiencies or detentions shall be submitted to the Navigation and Maritime Safety Department of the General Directorate of Merchant Marine within a period not exceeding fifteen (15) days from the date of the last day of inspection.
- 7.2.3.** Failure to take corrective action including the implementation of measures to prevent recurrence within the prescribed time limits shall be considered a major non-conformity or deficiency. Such failure may lead to enforcement actions, including Prohibition from Sailing, the imposition of fines, or cancellation of the vessel's registration, in accordance with the legal procedures established by applicable law.

8. Contact information:

8.1. Port State Control Section, Monday to Fridays (according to Panama local time and regular office hours).

Phone: (507) 501-5092 / 501-5033 / 501-5031

Email: pssc@amp.gob.pa ; prearrival@amp.gob.pa

8.2. SEGUMAR nearest Office: In cases where assistance is required, please refer to Marine Notice [MMN-18/2021](#)

8.2.1. In the cases above indicated, where assistance is requested to Segumar Office, please submit the following documents:

- 8.2.1.1.** Corrective Action Plan (CAP),
- 8.2.1.2.** Format in Annex 1 of this Merchant Marine Circular “Correction of Deficiencies Reports” Form (F-27).
- 8.2.1.3.** PSC inspection report,
- 8.2.1.4.** related Statutory Certificates copy, and
- 8.2.1.5.** RO survey report (i.e., Conditional or Single Voyage authorization).



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8.2.2. Authorizations granted by SEGUMAR Offices shall not be considered as a “release letter” in case of a PSC detention. In case of detention or deficiencies required to be rectified at the present port of inspection, authorizations will only be granted after acceptance/approval of the Port State Control Officer.

9. Annexes:

- [Annex 1-Correction of Deficiencies Reports Form \(F-27\).](#)
- [Annex 2-Tokyo MOU-Criteria for attribution of RO responsibility.](#)
- [Annex 3-Paris MOU-Criteria for the responsibility assessment of recognized organization \(RO\).](#)
- [Annex 4-MMN-08/2025 Panama Flag Vessel's: Mandatory notification to flag and next port Authorities, and onboard record keeping of resolving Port State Control \(Psc\) Inspections Findings.](#)
- [Annex 5-MERCHANT MARINE CIRCULAR MMC-404 Measures adopted to enhance the performance of the Panamanian Merchant Fleet – Pre-arrival checklist for ports under the Port State Control \(PSC\) supervision of the United States Coast Guard \(USCG\), Paris MoU, Australian Maritime Safety Authority \(AMSA\) and People's Republic of China Maritime Safety Administration \(MSA\).](#)
- [Annex 6-MERCHANT MARINE CIRCULAR MMC-379 Procedure for Port State Control \(PSC\).](#)

September, 2025 – New.

Inquiries concerning the subject of this Merchant Marine Circular or any other request should be forward to:

Navigation and Maritime Safety Department
General Directorate of Merchant Marine
Panama Maritime Authority

Phone: (507) 501-5031

E-mail: psc@amp.gob.pa ; fsc@amp.gob.pa ; prearrival@amp.gob.pa

Website: <https://panamashipregistry.com/circulars/>